

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 3500 By: Duel of the House
3
and
4
Howard of the Senate
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7 An Act relating to probate procedure; amending 58
O.S. 2021, Section 1252, as amended by Section 1,
8 Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section
1252), which relates to transfer-on-death deeds;
9 removing nine-month requirement to accept property;
providing procedure if transfer-on-death deed is not
10 claimed within a certain time period after the record
owner's death; and providing an effective date.
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13 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert
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15 "An Act relating to transfer-on-death deeds; amending
58 O.S. 2021, Section 1252, as amended by Section 1,
16 Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section
1252), which relates to acceptance by designated
17 grantee beneficiary; modifying procedures for
affidavits to accept certain property; modifying time
18 limitation for acceptance of certain property;
providing procedure if transfer-on-death deed is not
19 claimed within certain time period after death of
record owner; requiring certain notice; and providing
20 an effective date.
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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:
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1 SECTION 1. AMENDATORY 58 O.S. 2021, Section 1252, as
2 amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025,
3 Section 1252), is amended to read as follows:

4 Section 1252. A. An interest in real estate may be titled in
5 transfer-on-death form by recording a deed, signed by the record
6 owner of the interest, designating a grantee beneficiary or
7 beneficiaries of the interest. The deed shall transfer ownership of
8 the interest upon the death of the owner. A transfer-on-death deed
9 need not be supported by consideration. For purposes of the
10 Nontestamentary Transfer of Property Act, an "interest in real
11 estate" means any estate or interest in, over or under land,
12 including surface, minerals, structures and fixtures.

13 B. The signature, consent or agreement of or notice to a
14 grantee beneficiary or beneficiaries of a transfer-on-death deed
15 shall not be required for any purpose during the lifetime of the
16 record owner.

17 C. A designated grantee beneficiary may accept real estate
18 pursuant to a transfer-on-death deed only on behalf of himself,
19 herself, or a legal entity over which he or she has proper
20 authority. A beneficiary shall not accept such real estate on
21 behalf of another designated beneficiary.

22 D. Each designated grantee beneficiary wishing to accept real
23 estate pursuant to a transfer-on-death deed shall execute an
24 affidavit affirming:

1 1. Verification of the record owner's death;

2 2. Whether the record owner and the designated beneficiary were
3 married at the time of the record owner's death; and

4 3. A legal description of the real estate.

5 E. ~~The~~ Each designated grantee beneficiary shall ~~attach~~ sign
6 and record an affidavit and a copy of the record owner's death
7 certificate to the beneficiary affidavit. ~~For a record owner's~~
8 ~~death occurring on or after November 1, 2011, the beneficiary shall~~
9 ~~record the affidavit and related documents~~ with the office of the
10 county clerk where the real estate is located ~~within nine (9) months~~
11 ~~of the grantor's death, otherwise the interest in the property~~
12 ~~reverts to the deceased grantor's estate; provided, however, for a~~
13 ~~record owner's death occurring before November 1, 2011, such~~
14 ~~recording of the affidavit and related documents by the beneficiary~~
15 ~~shall not be subject to the nine-month time limitation~~ acknowledging
16 the beneficiary's acceptance of the interest in the real estate. A
17 beneficiary may only accept real estate on his or her own behalf;
18 provided, however, multiple beneficiaries may sign the same
19 affidavit. The affidavit may be filed at any time after the death
20 of the record owner provided that the presentment date for creditors
21 has not passed for the estate of the record owner as provided in
22 subsection F of this section. Notwithstanding the provisions of
23 Section 26 of Title 16 of the Oklahoma Statutes, an affidavit
24 properly sworn to before a notary shall be received for record and

1 recorded by the county clerk without having been acknowledged and,
2 when recorded, shall be effective as if it had been acknowledged.

3 F. If no designated grantee beneficiary claims the real estate
4 within one (1) year of the death of the record owner, such property
5 may be included in an estate of the record owner opened pursuant to
6 Title 58 of the Oklahoma Statutes. Notice shall be provided to all
7 named beneficiaries of the deed in the manner required by the
8 probate procedure for a known creditor of the estate. Any unclaimed
9 interest remaining at the expiration of the presentment date for
10 creditor claims in the probate of the estate of the record owner
11 shall be forfeited and barred from being claimed by the named
12 beneficiary and the unclaimed interest shall become property of the
13 estate. If an estate of the record owner is opened for probate
14 prior to the one-year anniversary of the date of death of the record
15 owner, the personal representative shall be required to provide a
16 new notice to each unclaimed beneficiary at his or her last-known
17 address, or if an unclaimed beneficiary's address is unknown or the
18 unclaimed beneficiary has died after the record owner but prior to
19 acceptance, then by publication in one issue of a newspaper in the
20 county in which the property is located. The unclaimed interest
21 shall not be forfeited to the estate until thirty (30) days after
22 the mailing of notice or the publication of notice in the newspaper.
23 Upon the expiration of such period, the unclaimed interest shall
24 become property of the estate.

G. A beneficiary affidavit recorded pursuant to this section before November 1, 2023, in which one or more, but not all, named beneficiaries of a transfer-on-death deed explicitly accepts the interests being conveyed by the deed on behalf of all or some of the beneficiaries named therein shall be effective to accept such interests if executed by at least one of the named beneficiaries accepting such interests.

SECTION 2. This act shall become effective November 1, 2026."

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 3500

By: Duel of the House

3 and

4 Howard of the Senate
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7 An Act relating to probate procedure; amending 58
8 O.S. 2021, Section 1252, as amended by Section 1,
9 Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025, Section
10 1252), which relates to transfer-on-death deeds;
11 removing nine-month requirement to accept property;
12 providing procedure if transfer-on-death deed is not
13 claimed within a certain time period after the record
14 owner's death; and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 3. AMENDATORY 58 O.S. 2021, Section 1252, as
17 amended by Section 1, Chapter 101, O.S.L. 2023 (58 O.S. Supp. 2025,
18 Section 1252), is amended to read as follows:

19 Section 1252. A. An interest in real estate may be titled in
20 transfer-on-death form by recording a deed, signed by the record
21 owner of the interest, designating a grantee beneficiary or
22 beneficiaries of the interest. The deed shall transfer ownership of
23 the interest upon the death of the owner. A transfer-on-death deed
24 need not be supported by consideration. For purposes of the
Nontestamentary Transfer of Property Act, an "interest in real

1 estate" means any estate or interest in, over or under land,
2 including surface, minerals, structures and fixtures.

3 B. The signature, consent or agreement of or notice to a
4 grantee beneficiary or beneficiaries of a transfer-on-death deed
5 shall not be required for any purpose during the lifetime of the
6 record owner.

7 C. A designated grantee beneficiary may accept real estate
8 pursuant to a transfer-on-death deed only on behalf of himself,
9 herself, or a legal entity over which he or she has proper
10 authority. A beneficiary shall not accept such real estate on
11 behalf of another designated beneficiary.

12 D. Each designated grantee beneficiary wishing to accept real
13 estate pursuant to a transfer-on-death deed shall execute an
14 affidavit affirming:

- 15 1. Verification of the record owner's death;
16 2. Whether the record owner and the designated beneficiary were
17 married at the time of the record owner's death; and
18 3. A legal description of the real estate.

19 E. The grantee shall attach a copy of the record owner's death
20 certificate to the beneficiary affidavit. For a record owner's
21 death occurring on or after November 1, 2011, the beneficiary shall
22 record the affidavit and related documents with the office of the
23 county clerk where the real estate is located ~~within nine (9) months~~
24 ~~of the grantor's death, otherwise the interest in the property~~

1 ~~reverts to the deceased grantor's estate; provided, however, for a~~
2 ~~record owner's death occurring before November 1, 2011, such~~
3 ~~recording of the affidavit and related documents by the beneficiary~~
4 ~~shall not be subject to the nine month time limitation.~~

5 Notwithstanding the provisions of Section 26 of Title 16 of the
6 Oklahoma Statutes, an affidavit properly sworn to before a notary
7 shall be received for record and recorded by the county clerk
8 without having been acknowledged and, when recorded, shall be
9 effective as if it had been acknowledged.

10 F. If no designated grantee beneficiary claims the real estate
11 within one (1) year of the death of the record owner, then the
12 property may be included in an estate of the record owner opened
13 pursuant to this title. Notice shall be provided to all named
14 beneficiaries of the deed in the manner required by the probate
15 procedure for a creditor of the estate. Any unclaimed interest at
16 the time of hearing for the final decree of probate of the estate of
17 the recorded owner shall be treated as forfeit and the unclaimed
18 interest shall pass pursuant to the provisions of the estate
19 distribution.

20 G. A beneficiary affidavit recorded pursuant to this section
21 before November 1, 2023, in which one or more, but not all, named
22 beneficiaries of a transfer-on-death deed explicitly accepts the
23 interests being conveyed by the deed on behalf of all or some of the
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1 beneficiaries named therein shall be effective to accept such
2 interests if executed by at least one of the named beneficiaries
3 accepting such interests.

4 SECTION 4. This act shall become effective November 1, 2026.

5 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House
of Representatives

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10 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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